

CHAPTER 16.

An Act to amend the Law relating to ancient
monuments. [11th June 1931.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the same,
as follows :—

*Schemes for preserving amenities of ancient
monuments.*

Schemes for
preserving
amenities of
ancient
monuments.

1.—(1) For the purpose of preserving the amenities
of any ancient monument, the Commissioners may,
subject to the provisions of this section, prepare and
confirm a scheme (hereafter in this Act referred to
as “a preservation scheme”) for any area comprising or
adjacent to the site of the monument, being an area
to which, in the opinion of the Commissioners, it is
necessary or expedient for that purpose that the scheme
should apply.

(2) Every preservation scheme shall define by refer-
ence to a map annexed thereto the area to which the
scheme is applicable (hereafter in this Act referred to
as “the controlled area”) and may provide for all or
any of the following matters, that is to say:—

- (a) for prohibiting or restricting the construction,
erection or execution of buildings, structures
and other works above ground within the con-
trolled area, or the alteration or extension of
any such buildings, structures or works in such
manner as materially to affect their external
appearance;
- (b) for prescribing the position, height, size, design,
materials, colour and screening, and otherwise
regulating the external appearance, of buildings,
structures and other works above ground within
the controlled area;

- (c) for prohibiting or restricting the felling of trees, quarrying and excavations within the controlled area;
- (d) for otherwise restricting the user of land within the controlled area to such extent as may appear to the Commissioners to be expedient for the purpose of preserving the amenities of the monument;
- (e) for such other matters as appear to the Commissioners to be incidental to or consequential on the foregoing provisions of this section or to be necessary for giving effect to those provisions.

(3) The provisions of the First Schedule to this Act shall have effect with respect to the confirmation, variation and revocation of preservation schemes.

(4) Nothing in any preservation scheme shall affect any building, structure or other work above ground or any alteration or extension thereof, if it was constructed, erected or executed before the date when notice of intention to confirm the scheme was published in the London Gazette under the First Schedule to this Act, and for the purpose of this provision a building, structure or other work and any alteration or extension thereof shall be deemed to have been constructed, erected or executed before that date—

- (a) if its construction, erection or execution was begun before that date; or
- (b) if and so far as its construction, erection or execution was necessary for the purpose of performing a contract made before that date.

(5) Any person whose property is injuriously affected by the coming into force of a preservation scheme shall be entitled to obtain compensation in respect thereof from the Commissioners, subject to the provisions of the Second Schedule to this Act.

(6) If any person contravenes any provision of a preservation scheme for the time being in force, he shall be liable on summary conviction to a fine not exceeding

twenty pounds for every day on which the contravention occurs or continues.

(7) If, after any person has been convicted of a contravention of a preservation scheme by reason that any building, structure or other work is not in conformity with the scheme, the contravention continues after the expiration of such period as the court before whom he was convicted may determine, the Commissioners shall have power to do all such acts as, in their opinion, are necessary for removing so much of the building, structure or work as is not in conformity with the scheme, or for making it conform with the scheme, and any expenses incurred by the Commissioners in so doing shall be recoverable summarily as a civil debt from the person convicted.

Power of
Commis-
sioners to
contribute
to expenses
of town
planning
schemes.
15 & 16 Geo.
5. c. 16.

2.—(1) If it appears to the Commissioners that a town planning scheme approved after the commencement of this Act under the Town Planning Act, 1925, has the effect of preserving to the satisfaction of the Commissioners the amenities of an ancient monument, the Commissioners may defray, either in whole or in part, such part of the expenses incurred by any local authority in connexion with the scheme as, in the opinion of the Commissioners, is attributable to the provisions of the scheme having the effect aforesaid.

(2) In this section the expression “local authority” means a local authority as defined by the Town Planning Act, 1925, or a county council.

Amendments of 3 & 4 Geo. 5. c. 32.

Extension
of powers
as respects
mainten-
ance of
ancient
monuments.

3.—(1) The powers conferred by section four of the principal Act upon the Commissioners and upon local authorities with respect to the maintenance of an ancient monument of which they are the guardians shall, except in so far as may be otherwise expressly provided by the deed constituting the Commissioners or the local authority guardians of the monument, include power to do all such things as may be necessary for the maintenance of the monument and for the exercise of proper control and management with respect thereto by the Commissioners or authority, and in particular (without

prejudice to the generality of the foregoing provision or of the provisions of the said section four) power to make any examination of the monument, and to open up the monument or make excavations therein for the purpose of examination or otherwise.

(2) The Commissioners and a local authority shall, for the purpose of exercising any of their powers under the said section four in relation to any ancient monument of which they are the guardians, have access to the monument by any person authorised by them to act on their behalf as well as by themselves, their inspectors, agents, and workmen.

(3) The Commissioners may, in connexion with an ancient monument of which they are not the owners or guardians, undertake, or assist in, or defray or contribute towards the cost of, any work, which, if they were the guardians of the monument, they would be empowered to do by section four of the principal Act and the foregoing provisions of this section :

Provided that—

- (a) the Commissioners shall not exercise the powers conferred by this subsection except with the consent of every person whose consent to the work would apart from this subsection be required; and
- (b) no expenses shall be incurred by the Commissioners under this subsection in connexion with any monument which is occupied as a dwelling-house by any person other than a person employed as the caretaker thereof or his family.

4.—(1) Section six of the principal Act shall have effect in relation to any Preservation Order made after the commencement of this Act as if for subsection (3) thereof (which relates to the duration and confirmation of Preservation Orders) there were substituted the following subsections, that is to say :—

Amend-
ments as to
Preserva-
tion Orders.

- “ (3) On the making of a Preservation Order
- “ the Commissioners shall cause the Order to be
- “ published in the London Gazette and a copy of
- “ the Order to be fixed on some conspicuous part

“ of the monument, and shall also cause a copy
 “ of the Order, together with a notice stating
 “ the effect thereof, to be served upon the owner
 “ and upon the occupier of the monument.

“ (3A) If within three months after the pub-
 “ lication of the Order in the London Gazette any
 “ person, who appears to the Commissioners to
 “ have an interest in the monument, gives notice
 “ in writing to the Commissioners that he objects
 “ to the Order, the Order shall, if the objection
 “ is not withdrawn, cease to have effect upon
 “ the expiration of a period of twenty-one months
 “ from the making thereof unless it is confirmed
 “ by Parliament, but in any other case the Order
 “ shall, without confirmation by Parliament,
 “ have effect until revoked by an Order made
 “ by the Commissioners in like manner as the
 “ original Order.

“ (3B) Where under the foregoing provisions
 “ of this section a Preservation Order ceases to
 “ have effect by reason of its not being confirmed
 “ by Parliament, no further Preservation Order
 “ shall be made in respect of the same monument
 “ until after the expiration of five years from
 “ the date on which the former Order ceased to
 “ have effect.”

(2) In subsection (2) of section seven of the principal Act the words “owing to neglect” shall be substituted for the words “owing to the neglect of the owner.”

Amendment
 as to volun-
 tary con-
 tributions.

5.—(1) The Commissioners shall have power under section nine of the principal Act to receive voluntary contributions towards the cost of the maintenance and preservation of any ancient monument, and to enter into any agreement with the owner of any such monument or with any other person as to the maintenance and preservation of the monument and the cost thereof, notwithstanding that the Commissioners are not the owners or guardians of the monument.

(2) For the purpose of the said section, references to the preservation of a monument shall be construed as including references to the preservation of the amenities of the monument.

6.—(1) Before including any monument in a list published under section twelve of the principal Act after the commencement of this Act, being a monument which was not included in a list published under that section before the commencement of this Act, the Commissioners shall, instead of informing the owner as required by subsection (1) of that section, cause to be served upon the owner of the monument and upon the occupier thereof (if any) a notice in writing of their intention to include the monument in the list.

Amend-
ments as to
lists of
ancient
monuments.

(2) No person served with a notice under the last foregoing subsection shall, unless and until the monument to which the notice relates ceases to be included in any such list as aforesaid, execute or permit to be executed, except in a case of urgent necessity, any work for the purpose of demolishing, removing or repairing any part of the monument, or of making any alterations or additions thereto, until the expiration of three months after he has given to the Commissioners notice in writing of his intention to do so, and any person acting in contravention of the provisions of this subsection shall be liable on summary conviction to a fine not exceeding one hundred pounds, or to imprisonment for a term not exceeding three months, or to both.

(3) Where the owner of any monument has been served with a notice under subsection (1) of this section, then (subject to the provisions of the Land Charges Act, 1925, as amended by any subsequent enactment and as applied by this Act) every person subsequently becoming the owner of the monument shall, for the purposes of the last foregoing subsection, be deemed to have been so served.

15 & 16
Geo. 5. c. 22.

(4) Subsection (2) of section twelve of the principal Act shall cease to have effect, and for the purposes of subsection (2) of this section the person who, at the commencement of this Act, is the owner of any monument included in any such list as aforesaid which was published before the commencement of this Act, and (subject to the provisions of the Land Charges Act, 1925, as amended by any subsequent enactment and as applied by this Act) every person subsequently becoming the owner of the monument, shall be deemed to have

been served with a notice under subsection (1) of this section.

(5) The Commissioners may at any time cause to be served upon the occupier of a monument which is included in any such list as aforesaid, whether published before or after the commencement of this Act, a notice in writing that the monument is so included, and after the service of such a notice upon any such occupier the provisions of subsection (2) of this section shall apply with respect to him as if he had been served with a notice under subsection (1) of this section.

Amendment
as to regu-
lations with
respect to
public
access to
monuments.

7.—(1) The power conferred on the Commissioners and local authorities by section thirteen of the principal Act to prescribe regulations under which the public shall have access to ancient monuments of which the Commissioners or local authorities are the owners or guardians, shall include power to make such regulations as appear to the Commissioners or a local authority, as the case may be, to be necessary for the preservation of the monument or of any property of the Commissioners or local authority, or for prohibiting or regulating any act or thing tending to injury or disfigurement of the monument or the amenities thereof, and without prejudice to the generality of the foregoing provisions, regulations as to the fees to be charged for admission; and the Commissioners shall have power to prescribe such regulations with respect to any monument which is under their control or management, notwithstanding that they are not the owners or guardians thereof.

(2) If any person contravenes or fails to comply with any such regulations, he shall be liable on summary conviction to a fine not exceeding five pounds or to imprisonment for a term not exceeding one month, or to both, and shall also be liable to pay such sum as the court before whom he was convicted may order for the purpose of repairing any damage caused by him.

(3) Regulations made by a local authority under the said section after the commencement of this Act shall not take effect unless they are submitted to and confirmed by the Minister of Health after consultation with the Commissioners, and the Minister of Health may confirm any such regulations either with or without modification.

8. The corporation of the Commissioners as incorporated for the purposes of the principal Act by subsection (1) of section twenty of that Act is hereby dissolved, and all property, powers, rights and duties vested in and exercised and performed by the Commissioners as a corporation incorporated under that subsection are hereby vested in and may be exercised and performed by the Commissioners as the corporation confirmed by the Works and Public Buildings Act, 1874.

Dissolution
of special
incorpora-
tion of Com-
missioners.

37 & 38 Vict.
c. 84.

Miscellaneous Provisions.

9.—(1) Subject as hereinafter provided, any person specially authorised in writing in that behalf by the Commissioners, after giving not less than fourteen days' notice in writing to the occupier of his intention so to do and on production of his authority if so required by or on behalf of the occupier, may enter for the purposes of investigation at all reasonable times upon any land which the Commissioners have reason to believe contains an ancient monument, and may make excavations in the land for the purposes of examination:

Power of
Commis-
sioners to
enter upon
lands.

Provided that—

- (a) no person shall, under the powers conferred by this section, enter any dwelling-house or any building, park, garden, pleasure ground or other land used for the amenity or convenience of a dwelling-house except with the consent of the occupier; and
- (b) no excavation shall be made under the said powers except with the consent of every person whose consent to the making of the excavation would, apart from this section, be required.

(2) If any person wilfully obstructs or hinders any person duly authorised by the Commissioners in the exercise of the powers conferred by this section, he shall be liable on summary conviction to a fine not exceeding five pounds.

10.—(1) Every document, required or authorised to be served under section six of the principal Act, or under this Act, upon the owner or occupier of an ancient

Service of
documents.

monument, may be served either by delivering it or leaving it at the usual or last-known place of abode of the person on whom it is to be served, or by sending it by post as a registered letter addressed to him at his last-known place of abode or, if that cannot be found, by fixing it on some conspicuous part of the monument.

(2) Any such document may, as the case requires, be addressed to the "owner" or "occupier" of the monument (describing it) without further name or description.

Registration
of land
charges
created with
respect to
ancient
monuments.

11. As from the commencement of this Act, the provisions of the Land Charges Act, 1925, as amended by any subsequent enactment, shall apply to the following instruments as if they were local land charges, that is to say :—

- (a) any deed or order, whether executed or made before or after the commencement of this Act, constituting the Commissioners or a local authority guardians of an ancient monument; and
- (b) any preservation scheme or notice of intention to confirm such a scheme; and
- (c) any Preservation Order, whether made before or after the commencement of this Act; and
- (d) any notice served on the owner of a monument, being a notice of intention to include the monument in a list published after the commencement of this Act under section twelve of the principal Act, and any entry in a list published before the commencement of this Act under that section, recording the inclusion of a monument in that list;

and every such instrument shall be registered accordingly by the proper officer of the council of every county borough, county district or metropolitan borough comprising any part of the land affected by the instrument and, in a case where any part of that land is comprised in the City of London, by the proper officer of the Common Council :

Provided that nothing in the foregoing provisions of this section shall operate so as to impose any obligation to register any such instrument executed, made or served before the commencement of this Act

until the expiration of three years from the commencement of this Act, or so as to discharge a purchaser from liability in respect of any such instrument which is not for the time being required to be registered.

12. The Documentary Evidence Act, 1868, as amended by the Documentary Evidence Act, 1882, shall apply to the Commissioners as if they were mentioned in the first column of the Schedule to the first-mentioned Act, and as if any of the Commissioners or the Secretary to the Commissioners, or any person authorised to act on behalf of the Secretary, were specified in the second column of that Schedule in connexion with the Commissioners, and as if the regulations referred to in those Acts included any document issued by the Commissioners under the principal Act or this Act.

Application
of Docu-
mentary
Evidence
Acts to
documents
issued by
Commis-
sioners.
31 & 32 Vict.
c. 37.
45 & 46 Vict.
c. 9.

Supplemental.

13. All expenses incurred by the Commissioners under this Act shall be defrayed out of moneys provided by Parliament.

Expenses of
Commis-
sioners.

14. No stamp duty shall be chargeable on any instrument made by, to, or with the Commissioners for the purposes of the principal Act or this Act.

Exemption
of instru-
ments from
stamp duty.

15.—(1) The definitions contained in section twenty-two of the principal Act of the expressions “monument” and “ancient monument” shall cease to have effect, and for the purposes of the principal Act and this Act—

Interpreta-
tion.

(a) the expression “monument” shall include any building, structure, or other work, whether above or below the surface of the land, other than an ecclesiastical building for the time being used for ecclesiastical purposes, and any cave or excavation;

(b) the expression “ancient monument” shall include—

(i) any monument specified in the Schedule to the Ancient Monuments Protection Act, 1882; and

45 & 46 Vict.
c. 73.

(ii) any monument for the time being specified in a list published under section twelve of the principal Act; and

(iii) any other monument or group of monuments and any part or remains of a monument or group of monuments which in the opinion of the Commissioners is of a like character, or of which the preservation is, in the opinion of the Commissioners, a matter of public interest by reason of the historic, architectural, traditional, artistic or archaeological interest attaching thereto:

and, for the purposes of Parts I. and II. and sections nine and ten of the principal Act (which relate respectively to the acquisition of ancient monuments by agreement, to the guardianship of ancient monuments, to the power to receive voluntary contributions for maintenance of ancient monuments and to the transfer of ancient monuments under guardianship), the expression "ancient monument" shall include any land comprising or adjacent to an ancient monument as hereinbefore defined which, in the opinion of the Commissioners or the local authority, as the case may be, is reasonably required for the purpose of maintaining the monument or the amenities thereof, or for providing or facilitating access thereto, or for the exercise of proper control or management with respect thereto.

(2) The provisions of subsection (3) of section four of the principal Act relating to the matters which are included in the expressions "maintenance" and "maintain" shall apply for all the purposes of that Act and of this Act.

(3) For the purposes of this Act and of section six and subsection (3) of section fourteen of the principal Act, the expression "owner" in relation to a monument shall mean any person (other than a mortgagee not in possession) entitled (either with or without the consent of any other person) to dispose of the fee simple of the site of the monument.

(4) In this Act the expression "the Commissioners" means the Commissioners of Works, and the expression "the principal Act" means the Ancient Monuments Consolidation and Amendment Act, 1913.

3 & 4 Geo. 5.
c 32.

Special provisions as
to Scotland.
15 & 16
Geo. 5. c. 17.

16.—(1) For the purpose of the application of this Act to Scotland, the Secretary of State shall be substituted for the Minister of Health; the Town Planning (Scotland) Act, 1925, shall be substituted for the Town

Planning Act, 1925; the Edinburgh Gazette shall be substituted for the London Gazette.

(2) For the purposes of this Act and of section six and subsection (3) of section fourteen of the principal Act the expression "owner" in relation to a monument situate in Scotland, shall include institute or heir of entail in possession.

(3) For the purposes of the principal Act the expression "freehold or copyhold land," in relation to land in Scotland, means land held in fee simple.

(4) In the application to Scotland of section two of this Act the expression "local authority" means a local authority for the purposes of the Town Planning (Scotland) Act, 1925, as amended by the Local Government (Scotland) Act, 1929.

19 & 20
Geo. 5. c. 25.

(5) Section eleven of this Act shall not apply in relation to an ancient monument situated in Scotland or to a preservation scheme for an area in Scotland, but it shall be competent to register in the appropriate register of sasines any of the following instruments relating to any such monument which is heritable or to any such area, that is to say—

- (a) any deed or order whether executed or made before or after the commencement of this Act constituting the Commissioners or a local authority the guardians of the monument; or
- (b) any preservation scheme or notice of intention to confirm such a scheme; or
- (c) any Preservation Order, whether made before or after the commencement of this Act; or
- (d) a certificate by the Commissioners
 - (i) of the inclusion of the monument in a list published before the commencement of this Act under section twelve of the principal Act; or
 - (ii) of the service on the owner of the monument of a notice of intention to include the monument in such a list published after the commencement of this Act; or
- (e) any deed or order revoking or cancelling any such instrument as aforesaid, or a copy of such

deed or order certified by the Commissioners, or a certificate by the Commissioners that any such instrument has ceased to have effect.

(6) Any such instrument as is mentioned in the preceding subsection shall, whether registered in pursuance of the said subsection or not, be binding on any subsequent owner of the monument or of land in the area to which a preservation scheme applies, and the provisions of the principal Act and of this Act shall apply to such subsequent owner in like manner in all respects as if he had been the owner at the time when the instrument was executed or made.

(7) In the application to Scotland of section six of this Act, any reference to the provisions of the Land Charges Act, 1925, shall not apply.

(8) Subsection (1) of section twenty-three of the principal Act (which requires duplicates of reports made to the Commissioners to be forwarded to the Board of Trustees for National Galleries in Scotland) shall cease to have effect, and subsection (2) of the said section shall have effect as if the words "Royal or Parliamentary" were omitted therefrom.

Short title,
construc-
tion, repeal
and extent.

17.—(1) This Act may be cited as the Ancient Monuments Act, 1931, and the principal Act and this Act may be cited together as the Ancient Monuments Acts, 1913 and 1931.

(2) Except where the context otherwise requires, references in this Act to the principal Act shall be construed as references to that Act as amended by this Act, and this Act shall be construed as one with the principal Act.

(3) The provisions of the principal Act specified in the Third Schedule to this Act are hereby repealed.

(4) This Act shall not extend to Northern Ireland.

SCHEDULES.

FIRST SCHEDULE.

PROVISIONS AS TO CONFIRMATION, VARIATION AND REVOCATION OF PRESERVATION SCHEMES. Section 1.

1. Before confirming a preservation scheme (hereafter in this Schedule referred to as a "scheme"), the Commissioners shall cause to be published in the London Gazette, and in such other manner as they think best for informing persons affected, notice of their intention to confirm the scheme, of the place where copies thereof may be inspected, and of the time (which shall not be less than three months) within which and the manner in which representations with respect to the scheme may be made, and shall cause such notice as aforesaid to be given to every local authority whose area comprises any part of the controlled area.

2. Any person affected by the scheme may, within the time appointed under the last foregoing paragraph for making representations, send to the Commissioners written objection to the scheme stating the specific grounds of objection and the specific modifications required.

3. The Commissioners, after considering any representations and objections duly made with respect to a scheme, and after consulting the Minister of Health and the Minister of Transport, may by order confirm the scheme either with or without modifications:

Provided that—

(a) where an objection has been duly made to the scheme by any person appearing to the Commissioners to be affected thereby and has not been withdrawn, the Commissioners, unless they consider the objection to be frivolous or have modified the scheme as required by the objection, shall, before confirming the scheme, direct a public inquiry to be held as hereinafter provided and consider the report of the person who held the inquiry; and

(b) a scheme as so confirmed shall not apply to any area to which it would not have applied if it had been confirmed without modification.

4. Any inquiry under this Schedule shall be held in accordance with rules made by the Commissioners for the purpose, and such rules may contain provisions as to the costs of the inquiry.

1ST SCH.
—cont.

5. A scheme when so confirmed shall come into force on such date as may be specified in the order confirming it.

6. A scheme may be varied or revoked by a subsequent scheme, and the Commissioners may, after consulting the Minister of Health, by order revoke a scheme if they think in the circumstances that the scheme ought to be revoked.

7. As soon as practicable after the making of an order under this Schedule confirming or revoking a scheme, the order shall be published in the London Gazette, and in such other manner as the Commissioners think best for informing persons affected, and a copy of the order shall be sent to every local authority whose area comprises any part of the controlled area.

8. In this Schedule the expression "local authority" means, in England, the council of a county, county borough, county district or metropolitan borough or the Common Council of the City of London or, in Scotland, any county or town council.

SECOND SCHEDULE.

Section 1.

PROVISIONS AS TO COMPENSATION.

1. No person shall be entitled to compensation in respect of a preservation scheme unless within three months from the date on which the scheme comes into force, or within such further time as the Commissioners may in special circumstances allow, he makes a claim for the purpose in such manner as the Commissioners may by regulations prescribe.

2. A person shall not be entitled to compensation by reason of the fact that any act or thing done or caused to be done by him has been rendered abortive by a preservation scheme, if or so far as the act or thing was done after the date on which the Commissioners published in the London Gazette notice of their intention to confirm the scheme, or by reason of the fact that the performance of any contract made by him after that date is prohibited by the scheme.

3. Where any provision of a preservation scheme was, immediately before the scheme came into force, already in force by virtue of this or any other Act, no compensation shall be payable by reason of any property being injuriously affected by that provision of the preservation scheme if compensation has been paid, or could have been claimed, or was not payable, by reason of that property having been injuriously affected by the provision already in force.

4. Where any provision of a preservation scheme could, immediately before the scheme came into force, have been validly included in a scheme, order, regulation or byelaw by virtue of any other Act, then—

2ND SCH.
—cont.

- (a) if no compensation would have been payable by reason of the inclusion of that provision in that scheme, order, regulation or byelaw, no compensation shall be payable in respect of that provision of the preservation scheme; and
- (b) if compensation would have been so payable, the compensation payable in respect of that provision of the preservation scheme shall not be greater than the compensation which would have been so payable.

5. Any dispute as to whether any property is injuriously affected by a preservation scheme, or as to the amount of the sum which is to be paid as compensation in respect of such a scheme, shall be determined by arbitration under and in accordance with the Acquisition of Land (Assessment of Compensation) Act, 1919.

9 & 10 Geo. 5.
c. 57.

THIRD SCHEDULE.

PROVISIONS OF PRINCIPAL ACT REPEALED.

Section 17.

In subsection (3) of section four the words “in this section.”

In subsection (1) of section twelve, the words from “and the Commissioners” to the end of the subsection, and subsection (2) of that section.

Section nineteen.

In section twenty the words “shall be a body corporate by that name and shall have perpetual succession and a common seal, and”

Section twenty-two.

Subsection (1) of section twenty-three, and in subsection (2) of that section the words “Royal or Parliamentary.”

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